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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, June 8, 2026, 9:00 a.m.

• All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.

• You must provide your own court reporter (unless you have a fee waiver and request one in advance).

• Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Condra v. Gordon Lane Healthcare, LLC, 2025-01531960	DEMURRER – SUSTAINED WITH LEAVE TO AMEND Plaintiffs, Robert Condra (Decedent), by and through his successor in interest, and Christina Powderly (collectively Plaintiffs) sued Defendant Gordon Lane Healthcare, LLC dba Gordon Lane Care Center (Defendant) for elder abuse and neglect, violation of Health & Safety Code section 1430, and negligence. Defendant demurs to the first cause of action for elder abuse and neglect. The complaint alleges decedent was admitted to Defendant's skilled nursing facility because he was non-ambulatory and required assistance with his health, safety, and general well-being. The complaint also alleges that Defendant failed to provide proper care, withheld care, and/or failed to monitor or supervise Decedent. As a result, it is alleged that Decedent suffered two falls, the latter of which caused a head injury leading to his death. Defendant contends that the first cause of action states, at most, a claim for professional negligence. Defendant also contends Plaintiffs fail to plead specific facts demonstrating reckless, oppressive, fraudulent, or malicious conduct, or conscious disregard of a known and high probability of harm, as required to state a claim for elder abuse and to invoke the heightened remedies available under Welfare and Institutions Code section 15657. Finally, Defendant contends the first cause of action is vague, conclusory and uncertain. Plaintiffs contend that the Complaint sufficiently alleges facts to put Defendant on notice of Plaintiffs' claim for elder neglect, and that Defendant fails in its burden to establish that Plaintiffs' Complaint does not state a cause of action or is uncertain. Plaintiffs asserts that the Complaint alleges facts sufficient to state a cause of action for elder neglect as it satisfies the factors identified in Carter v. Prime Healthcare Paradise

Valley, LLC (2011) 198 Cal.App.4th 396; that the Complaint identifies some of the exact custodial duties (e.g., failure to monitor/supervise/assist/protect) as those identified in Holland v. Silverscreen Healthcare, Inc. (2025) 18 Cal.5th 364, as being ones of elder neglect and not professional negligence; that Defendant fails to adequately address the facts in the Complaint that allege they denied and withheld services to Deceased; and that Plaintiffs adequately allege sufficient facts that Defendant's conduct amounts to recklessness. Lastly, Plaintiffs assert that leave to amend should be granted if the Court sustains the demurrer.

"The Elder Abuse and Dependent Adult Civil Protection Act affords certain protections to elders and dependent adults. Section 15657 of the Welfare and Institutions Code provides heightened remedies to a plaintiff who can prove 'by clear and convincing evidence that defendant is liable for physical abuse as defined in Section 15610.63, or neglect as defined in Section 15610.57,' and who can demonstrate that the defendant acted with 'recklessness, oppression, fraud, or malice in the commission of [this] abuse.' " (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 152 ("Winn").)

Welfare & Institutions Code section 15610.57(a)(1) defines neglect as "[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise." Welfare & Institutions Code section 15610.57(b) states "Neglect includes, but is not limited to, all of the following: [¶¶] (3) Failure to protect from health and safety hazards." (Wel. & Inst. Code § 15610.57(b)(3).)

"[N]eglect as a form of abuse under the Elder Abuse Act refers 'to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.' [Citation.]" (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 404-405 ("Carter").)

To state a cause of action for neglect within the meaning of the Elder Abuse Act and thereby trigger the enhanced remedies available under the Act, the plaintiff must allege facts establishing that: (1) defendant had responsibility for meeting the basic needs of the elder adult; (2) defendant knew of conditions that made the elder adult unable to provide for his or her own basic needs; (3) defendant denied or withheld goods or services necessary to meet the elder adult's basic needs, either with knowledge that injury was substantially certain to befall the elder adult or with conscious disregard of the high probability of such injury; and (4) the neglect caused the elder or dependent adult to suffer physical harm, pain, or mental suffering. (Carter, supra, 198 Cal.App.4th at pp. 406-407.) "The facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Id. at 407.)

"[O]nly acts or omissions by a skilled nursing facility in its capacity as a health care provider fall under the banner of professional negligence. [Citation.] By contrast, 'a failure to fulfill custodial duties owed by a custodian who happens also to be a health care provider . . . is at most incidentally related to the provider's professional health care services.' [Citation.] The failure to provide basic necessities, such as assistance is personal hygiene, food, hydration, or clothing, are paradigmatic examples of a failure to fulfill custodian duties. [Citation.] The same is true of a failure to provide an adequate and habitable living space or protect from routine safety hazards. [Citations.] Similarly, a failure of staff to attend to, monitor, or assist a resident in obtaining appropriate medical care generally falls on the custodial side of the line because such omissions involve 'not . . . the undertaking of medical services, but . . . the failure to provide medical care.' [Citation.]" (Holland v. Silverscreen Healthcare, Inc. (2025) 18 Cal.5th 364, 380.) In the context of a skilled nursing facility, whether an action is based on the professional negligence of a health care provider turns on whether such duties are owed by virtue of being a medical services provider or by virtue of being the custodian of a dependent adult. (Id. at p. 381.)

The court finds that the first cause of action alleges that Defendant had responsibility for meeting the basic needs of Decedent (Complaint, ¶¶ 11, 14-16, 24-26); that Defendant knew of conditions that made Decedent unable to provide for his own basic needs (Complaint, ¶¶ 12-13, 17-18, 27, 30-31); and that Defendant denied or withheld services necessary to meet Decedent's basic needs with conscious disregard of the high probability of injuries from a fall (Complaint, ¶¶ 17-19, 27, 30-34). The alleged wrongful conduct in withholding services to prevent Decedent from falls and injuries from falls when knowing Decedent was immobile, non-ambulatory, and a fall risk do not sound in professional negligence as they arise by virtue of the duties of being the alleged custodian of a dependent elder, and the failure to fulfill the custodial duties owed by a custodian. Accordingly, the first cause of action states facts sufficient to state a cause of action for elder abuse and neglect.

Further, the allegations in the Complaint sufficiently allege facts supporting recklessness, i.e., deliberate disregard of the high degree of probability that an injury will occur, as it alleges that Defendant knew that Decedent was immobile, non-ambulatory, and required significant assistance with his activities of daily living, knew that Decedent was a fall risk and the risk of injuries as a result of a fall, and that Decedent fell once on the afternoon of when he was admitted on May 28, 2025, and then against three days later on May 31, 2025, which fall resulted in a head injury and subdural hematoma and Decedents subsequent death on June 6, 2025, such that Defendant failed to monitor and supervise, and use proper, reasonable, and adequate measures, precautions, and accommodations to protect Decedent from a fall, and thus, failed to properly provide and/or withheld the care and services from Decedent that would keep him free from falling and from the injuries that may result from a fall.

However, Defendant additionally argues that the elder abuse cause of action fails to state facts to support

			ratification. “In order to obtain the Act’s heightened remedies, a plaintiff must allege conduct essentially equivalent to conduct that would support recovery of punitive damages. [Citations.]” Those facts must be pled with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 789.) Welfare and Institutions Code section 15657 provides: “If it is proven by clear and convincing evidence, or by a preponderance of the evidence pursuant to Section 15657.02, that a defendant is liable for . . . , neglect as defined in Section 15610.57, . . . , and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse, the following shall apply, in addition to all other remedies otherwise provided by law: [¶¶.] (c) The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer.” (Welf. & Inst. Code § 15657(c).) Civil Code section 3294(b), provides: “An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director or managing agent of the corporation.” Here, the Complaint does not allege facts with particularity to support advance knowledge or conscious disregard, authorization, ratification or act of recklessness, oppression, fraud, or malice on the part of an officer, director, or managing agent of Defendant. On this ground, Defendant’s demurrer to the first cause of action of Plaintiffs’ Complaint is SUSTAINED, with 20 days’ leave to amend.

		"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal App.4th 612, 616.) Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (Lickiss v. Fin. Indus. Regulatory Auth. (2012) 208 Cal.App.4th 1125, 1135.) The allegations in the first cause of action are not so incomprehensible that Defendant cannot reasonably respond. Plaintiffs to give notice.
102		Off calendar
103	Hamidi v. Manheim Investments	CONTINUED
104		Off calendar
105	Christensen v. The David & Pam Living Trust, et al., 2025-01537249	DEMURRER – OVERRULED IN PART AND SUSTAINED IN PART WITH 20 DAYS LEAVE TO AMEND MOTION TO STRIKE – DENIED Cross-defendant Norm C. Christensen, as Trustee of the Norm C. Christensen 2020 Revocable Trust ("Cross-Defendant") demurs to first through eighth causes of action in the Cross-Complaint filed by Homayoun David Hamidi and Parastoo Amjadi, individually and as trustees of The David & Pam Living Trust, dated February 21, 2013 ("Cross-Complainants"). Cross-

Defendant also moves to strike the claim for punitive damages.

<u>Second Cause of Action for Breach of Implied Covenant of Good Faith and Fair Dealing</u>

Cross-Defendant argues this cause of action fails because it is superfluous to the claim for breach of contract.

The implied covenant of good faith and fair dealing imposes upon the contracting parties the obligation to do everything that the contract presupposes they will do to accomplish the purpose of the contract. (*Careau & Co. v. Security Pacific Business Credit, Inc*. (1990) 222 Cal.App.3d 1371, 1393.) A breach of the implied covenant requires more than a mere breach of a contractual duty, but "a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (*Id*. at pp. 1394-1395.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (*Id*. at p. 1395.)

Cross-Complainants allege that Cross-Defendant made false statements that the property was uninhabitable as a pretext to avoid contractual obligations under the lease. They allege that Cross-Defendant's refusal to occupy the property and attempts to repudiate or terminate the lease without a legal basis constitutes a breach. Under the second cause of action, they allege that Cross-Defendant breached the covenant of good faith and fair dealing by fabricating or exaggerating habitability issues in order to avoid contractual obligations. Because the two causes of action are not based on the same alleged breach, the second cause of action is not superfluous. Thus, the demurrer to the second cause of action is OVERRULED.

Third Cause of Action For Intentional Misrepresentation and Fourth Cause of Action for Negligent Misrepresentation

Cross-Defendant argues these fraud claims fail because the Cross-Complaint fails to allege why Cross-Defendant made the alleged misrepresentations to Cross-Complainants or how they justifiably relied on the alleged statements to do anything to their detriment.

"The essential elements of a count for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. [Citations.] The essential elements of a count for negligent misrepresentation are the same except that it does not require knowledge of falsity but instead requires a misrepresentation of fact by a person who has no reasonable grounds for believing it to be true." (*Chapman v. Skype, Inc.* (2013) 220 Cal.App.4th 217, 230-231.)

Here, Cross-Complainants allege that Cross-Defendant made false representations that the property was uninhabitable intending that Cross-Complainants and third parties rely upon such misrepresentations. Further, they allege that they reasonably relied on the representations in responding to Cross-Defendant's claims, addressing third party concerns, mitigating damages, and relisting the property. These allegations show intent to induce reliance—that Cross-Defendant intended Cross-Complainants to rely upon the representations to allow him to exit the lease—and allege sufficient facts showing justifiable reliance by Cross-Complainants at the pleading stage. Thus, the demurrer to the third and fourth causes of action is OVERRULED.

Fifth Cause of Action for Libel and Slander

Cross-Defendant contends that the libel claim fails because it is based on the conclusory allegation that "Cross-defendant published false statements to third parties that the Property was uninhabitable, mold-infested, unsafe, and/or otherwise dangerous" but the Cross-Complaint fails to set forth what the alleged false libelous statements were or to whom they were made. Cross-Defendant argues the slander claim also fails because Cross Complainants offer no allegations as to the alleged slanderous false oral statement, whether it was publicized to a third party, and how that third party understood the statement.

"Libel is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation." (Civ. Code, § 45.) "Slander is a false and unprivileged publication, orally uttered, and also communications by radio or any mechanical or other means which: . . .Tends directly to injure him in respect to his office, profession, trade or business, either by imputing to him general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to his office, profession, trade, or business that has a natural tendency to lessen its profits; or Which, by natural consequence, causes actual damage."

Cross-Complainants allege that Cross-Defendant made false statements to third parties that the property was uninhabitable, mold-infested, unsafe, and/or otherwise dangerous. The defamatory meaning of the alleged statements is readily apparent based on the facts alleged, as false statements regarding habitability or health concerns regarding a landlord's property on its face could have a tendency to injure that landlord's business. While the Cross-Complaint only alleges that the false statements were made to third parties without identifying those third parties, Cross-Defendant cites no authority showing that more specificity is required to assert a libel or slander cause of action at the pleading stage. The Cross-Complaint alleges that Cross-Complainants' business and rental operations were injured by the statements, which is sufficient to demonstrate that the statements had a tendency to injure their occupation or business. Thus, the demurrer to the fifth cause of action is OVERRULED.

Sixth Cause of Action for Trade Libel

Cross-Defendant argues this cause of action suffers from the same deficiencies as found in the libel and slander claims. For the same reasons as above, the demurrer to the sixth cause of action is OVERRULED.

Seventh Cause of Action for Intentional Interference with Prospective Economic Advantage

Cross-Defendant argues this cause of action fails to allege that Cross-Defendant knew of any existing relationship between Cross-Complainants and any third party who has an existing rental agreement with Cross-Complainants and that Cross-Defendant intentionally acted to disrupt that existing relationship.

The elements of a cause of action for intentional interference with prospective economic advantage "are usually stated as follows: ' "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." [Citations.]' " (*Korea Supply Co. v. Lockheed Martin Corp*. (2003) 29 Cal.4th 1134, 1153.)

Cross-Complainants allege that they "had prospective economic relationships and probable future rental transactions relating to the Property." However, they do not allege that they had any existing economic relationship with some third party that had the probability of a future economic benefit. An existing economic relationship with a third party is an essential element of the claim. Because Cross-Complainants have not alleged that element, the demurrer to the seventh cause of action is SUSTAINED with 20 days leave to amend.

<u>Eighth Cause of Action for Declaratory Relief</u>

Cross-Defendant argues this cause of action should be dismissed because the requested relief is superfluous, in light of the multitude of other claims seeking relief based upon the same purported facts, and no declaration of potential rights under the lease is necessary because the parties no longer have any relationship related to the lease.

Cross-Defendant's contention that the parties no longer have any relationship under the lease goes beyond the four corners of the Cross-Complaint, which alleges an actual controversy regarding the parties' respective rights and obligations under the lease. Thus, this argument lacks merit.

Further, the mere fact that a declaratory relief cause of action may seek relief that is the same as those sought under the other causes of action does not support dismissal of the claim. (See *Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 364 [" 'The mere circumstance that another remedy is available is an insufficient ground for

		refusing declaratory relief . . . .' "].) Thus, the demurrer to the eighth cause of action is OVERRULED. <u>Ninth Cause of Action for Unjust Enrichment</u> Cross-Defendant argues this claim should be dismissed because unjust enrichment is not a cause of action but a claim for restitution. There is a split of authority as to whether "unjust enrichment" is an independent cause of action. (*Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138 ["Although some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation], this court has recently held that '[t]here is no cause of action in California for unjust enrichment.' "].) The Court will follow *Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, which recognized unjust enrichment as a separate claim. Thus, the demurrer to the ninth cause of action is OVERRULED. <u>Motion to Strike</u> Because the fraud-based causes of action are sufficiently pled, the claim for punitive damages is properly pled. Thus, the motion to strike is DENIED. Moving party to give notice.
106	O'Kane v. Radovich, 2022-01276312	MOTIONS TO BE RELIEVED AS COUNSEL - GRANTED FBT Gibbons LLP ("Moving Attorney") moves to be relieved as counsel of record for (1) Defendant Dragica Radovich and (2) Defendant Chaslav Radovich. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362.

		The court will interlineate Paragraph 7 of the orders with the next hearing date: 06/29/26 at 9:00 a.m. in Department N14 - Motions to Be Relieved as Counsel of Record. The court will interlineate Paragraph 8 of the orders with the following additional hearing: 08/24/26 at 9:00 a.m. in Department N14 – Motion for Continuance of Trial. The court will interlineate Paragraph 9 of the orders with the correct trial date: 08/10/2026 at 8:30 a.m. in Department N14. The motions are GRANTED and will be effective in the filing of proof of service of the court's signed order on the clients. Moving Attorney to give notice.
107	Ramirez vs. Toyota Motor Sales U.S.A, Inc., 2024 01449865	MOTION FOR ATTORNEY FEES – GRANTED IN PART Plaintiffs Mario Bautista Ramirez and Adriana Ramirez Silma ("Plaintiffs") move for attorney fees and costs in the total amount of $23,424.50: $14,101.50 in attorney fees, a lodestar multiplier of 1.5 in the amount of $7,050.75, and $2,272.25 in costs and expenses. Defendant Toyota Motor Sales U.S.A., Inc. ("Defendant") contends the attorney fees requested should be reduced, and a lodestar multiplier should not be applied. Defendant does not seek to strike or tax any of the costs sought by Plaintiffs. The Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased new vehicles. Remedies include the right to recover "damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of

		costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "A prevailing buyer has the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158; see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34-35; Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.) "Determining a reasonable attorney fee award in Song-Beverly Act cases ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate." (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157; Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method."].) "The lodestar may 'then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.' " (Id.) "The Song-Beverly Act's attorney fee provision requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable." (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158 [internal quotations omitted].) "These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved." (Ibid.; see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691.) "If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into

		account and award attorney fees in a lesser amount." (Ibid.; see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 36, as modified (Oct. 11, 2019); Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41.) "The reasonable hourly rate is that prevailing in the community for similar work." (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157.) "The relevant "community" is generally based on where the services are rendered, i.e., where the court is located." (Ibid.) "Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County." (Ibid.) In considering whether to apply a multiplier (positive or negative) the court should conder the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41.) Notably, "it is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 35, as modified (Oct. 11, 2019).) Here, the parties agreed in their Settlement Agreement that Plaintiffs are the prevailing party for purposes of attorney fees and costs. The Court finds that Plaintiffs have carried their burden to establish that the attorney fees sought are reasonable except as to the lodestar enhancement. The Court finds that (1) the circumstances of this case were not so complex or procedurally demanding such that a lodestar enhancement is appropriate, (2) Defendant did not delay the case or use litigation tactics that would justify the application of an enhancement/multiplier, and (3) the entries flagged as inappropriate in Defendant's opposition are reasonable fees and billing entries under the circumstances of this case and the Court declines to subtract those fees and billing entries.

		Given the above, the motion for attorney fees, costs and expenses is GRANTED in the amount of $16,373.75. Plaintiff to give notice.
108	Robicheaux vs. Rowshan, 2022-01261647	MOTION TO QUASH TRIAL SUBPOENA - CONTINUED
109	Security National Insurance Company v. O.C. Services Inc., 2020-01164470	MOTION FOR ENTRY OF JUDGMENT - CONTINUED Plaintiff, Security National Insurance Company ("Plaintiff"), moves for entry of judgment in favor of Plaintiff, Security National Insurance Company, against Defendants, O. C. Services Inc. aka OC Services Inc. and dba Molly Maid of Newport, and S & C Inc. aka S and C Inc. and dba Molly Maid of Long Beach (collectively, "Defendants"), in the total amount of $432,914.42, inclusive of prejudgment interest plus the principal sums plus costs of suit and attorney's fees, pursuant to Code of Civil Procedure section 664.6. Plaintiff contends that this action was settled by way of a written settlement agreement, but that Defendants have defaulted and that the Court should enter judgment in accordance with the terms of the settlement agreement pursuant to Code of Civil Procedure section 664.6. No opposition has been filed. "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. §664.6(a).)

"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.]" (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) "The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal. [Citation.] Such a request must be made either in a writing signed by the parties or orally before the court. [Citation.]" (Ibid.) "A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to 'enter judgment pursuant to the terms of the settlement.'" (Ibid.)

Plaintiff provides an executed copy of the written settlement agreement between Plaintiff and Defendants, which provides, in relevant part:

1. Plaintiff was to have judgment in the principal amount of $344,890.35, plus prejudgment interest, plus attorney fees and costs;
2. Defendants would pay the discounted amount of $210,000 in monthly payments to settle the matter.
3. Default in the payments by Defendants would, "after seven days' written notice of default in the manner and to the address(es) set forth in Section 3.M. hereinbelow" entitled Plaintiff to apply for entry of judgment.
4. Notices under the settlement agreement were to be made by "first class mail."

		According to the declaration in support of the motion for entry of judgment, Defendants made payments under the terms of the settlement agreement in the sum of $155,000, but neither the November 1, 2025 payment nor any subsequent payments have been made. (Aires Decl., ¶ 6.) Therefore, Plaintiff's counsel sent a default letter to Defendants. (Id., Ex. B.) Counsel's declaration does not specify that the default letter was sent via first class mail as opposed to only by email. Plaintiff's motion for entry of judgment is CONTINUED to July 13, 2026 at 9:00 a.m. in Department N14. Plaintiff shall file and serve evidence establishing proper written notice of default pursuant to the terms of the Settlement Agreement. Said evidence to be filed and served no later than nine (9) court days before the continued hearing date. No other briefing is allowed or will be considered. Plaintiff to give notice.
110	Schiffer v. Spencer, 2026 - 01544448	Applications for Right to Attach Orders and Orders for Issuance of Writs of Attachment - DENIED. Upon the filing of a complaint or anytime thereafter, a plaintiff may apply for a right to attach order and writ of attachment. (Code Civ. Proc., § 484.010.) Following a hearing on the application, the court shall issue a right to attach order if it finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based; (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) The amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a).)

			A claim upon which an attachment may be issued is a claim (1) for money based upon a contract, express or implied, (2) of a fixed or readily ascertainable amount not less than $500, (3) either unsecured, or secured by personal property, but not real property (including fixtures), and (4) that is a commercial claim. (Code Civ. Proc., § 483.010.) Here, Plaintiff has not established that his claim is a commercial one. Section 483.010, subdivision (c) prohibits a prejudgment attachment against a defendant who is a natural person unless the claim arises out of "a trade, business, or profession." As courts have observed, "[t]hose terms may be found to encompass almost any activity engaged in for profit with frequency and continuity." (Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (1987) 197 Cal.App.3d 1, 4.) Here, the allegedly breached contract was for a short-term holiday rental of Defendant Christopher Spencer's residence. Plaintiff has not established that Spencer was in the trade, business or profession of renting out his residence, as there is no indication that this was anything other than a one-time rental of Spencer's private residence. (See, e.g., ROA 14, Schiffer Decl. ¶¶ 2-3.) Further, Plaintiff has not established the probable validity of his breach of contract claim. Plaintiff contends that Spencer breached the parties' written agreement by violating the express warranty provision found in Section 1.2, which Plaintiff declares reads: "Owner warrants the property has not been used for alcohol or drug rehabilitation therapy in any form in the last 3 years." (Schiffer Decl. ¶¶ 8-10.) Plaintiff did not present a copy of the Agreement to the Court. However, Spencer has presented a copy of the executed agreement, which does not contain a "Section 1.2." (Spencer Decl., ¶ 4, Exh. 1; Brown Decl. ¶ 3, Exh. 1.) There is no clause in the agreement that warranties the property had not previously been used as a rehabilitation facility. Additionally, it does not appear that Spencer Recovery Centers was a party to the agreement.

		Accordingly, the applications are DENIED. Plaintiff to give notice.
111	Solouki v. Saint-Gobain Performance Plastics Corporation, et al , 2025- 01507443	DEMURRER TO 3RD CAUSE OF ACTION - OVERRULED Defendant Mac Patel demurs to plaintiff Tony Solouki's third cause of action for harassment on the basis of age. Defendant argues that the cause of action fails to state sufficient facts because it is based on a single incident that involved a benign comment between two coworkers. Government Code section 12940, subdivision (j), defines "unlawful employment practice" to include harassment in the workplace based on, among other statuses, age. "Under the statute 'harassment' in the workplace can take the form of 'discriminatory intimidation, ridicule and insult' that is ' " 'sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment.' " ' [Citations.]" (Rehmani v. Superior Court (2012) 204 Cal.App.4th 945, 951.) "Whether the conduct of the alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. ' "These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance." ' [Citations.] ' "Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing . . . and conduct [that] a reasonable person in the plaintiff's position would find severely hostile or abusive." ' [Citations.]" (Rehmani, supra, 204 Cal.App.4th at pp. 951–952.) In an action for harassment, " '[i]t suffices to prove that a reasonable person subjected to the discriminatory conduct would find, as the plaintiff did, that the

		harassment so altered working conditions as to make it more difficult to do the job.' " (Gov. Code, § 12923(a).) "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Id., § 12923(b).) The third cause of action alleges that demurring defendant referred to plaintiff as an "old forgetful senior citizen" in front of several employees during a coworker's birthday celebration. (Compl. ¶ 43.) Plaintiff alleges that this is one example of a harassing and hostile work environment based on plaintiff's age and/or other protected statuses. (Ibid.) Demurring defendant concedes that a harassment cause of action may be based on a single incident, such as the claim against him here. The court cannot decide as a matter of law that Defendant's comment was not an unlawful employment practice. In light of the above, the demurrer is OVERRULED. Defendant to file an answer to the complaint within 20 days. Defendant to give notice.
112	Time Investments LLC v Orleman, 2024-01385610	MOTION TO STRIKE ANSWER - GRANTED OSC RE MONETARY SANCTIONS - DISCHARGED Plaintiff Time Investments, LLC ("Plaintiff") moves to strike Defendant Marc Orleman's ("Defendant") Answer to Plaintiff's First Amended Complaint and for an order granting monetary sanctions. Defendant failed to respond to Plaintiff's initial written discovery requests, resulting in a Court order compelling responses, deeming the truth of matters in requests for admission admitted, and imposing monetary sanctions in the amount of $3,750. (ROA 74.) The underlying motions to compel were unopposed, and Defendant did

		not appear at the hearing. (Ibid.) Responses were due on 9/4/25 and sanctions were to be paid by 9/24/25. As of the filing of this motion on 10/28/25, Defendant had neither provided responses nor paid the monetary sanctions. Defendant did not file an opposition to this motion. The hearing on this motion was continued. Defendant still has not provided discovery responses or paid the monetary sanctions. The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992; Caryl Richards, Inc. v. Superior Court (1961) 188 Cal.App.2d 300, 303.) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (Doppes, 174 Cal.App.4th at 99.) It is only when a party persists in disobeying the court's orders that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (See Deyo v. Kilbourne (1978) 84 Cal.App.3d 771.) Terminating sanctions for failure to comply with a court order are allowed only where the failure was willful. (See R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495; Vallbona v. Springer (1996) 43 Cal.App.4th 1525, 1545; Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327.) Here, despite repeated opportunities to do so, Defendant has completely failed to respond to basic discovery requests. Defendant has failed to pay the monetary sanctions imposed by this court's order. Defendant's failure has continued despite this court's continuance of the hearing on the present motion. Therefore, the court finds that Defendant has engaged in a pattern of conduct that rises to the level which would justify the sanction of having its answer stricken.

		The Court finds that additional monetary sanctions would not compel responses by Defendant. The court will strike Defendant's answer and enter default. Plaintiff to give notice.
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